



Farriers (Registration) (Amendment) Act 1977

1975 CHAPTER 31

An Act to amend the provisions of the Farriers (Registration) Act 1975 with respect to the qualifications for registration thereunder; and for other purposes.

[22nd July 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The provisions of the Farriers (Registration) Act 1975 specified in the Schedule to this Act shall have effect subject to the amendments set out in the said Schedule. Amendments
of Farriers
(Registration)
Act 1975.

(2) The following provisions of the said Act are hereby repealed:— 1975 c. 35.

section 11(2);
section 16(1)(c); and
section 16(4).

2.—(1) This Act may be cited as the Farriers (Registration) (Amendment) Act 1977. Short title
and commence-
ment.

(2) This Act (except paragraph 5 of the Schedule hereto) shall come into force at the expiration of three months beginning on the day on which it is passed.

(3) Paragraph 5 of the Schedule hereto shall come into force at the expiration of six months beginning on the day on which this Act is passed.

Section 1.

THE SCHEDULE

Amendments of Farriers (Registration) Act 1975

1. For section 7 (Qualifications for registration) there shall be substituted the following section:—

“7.—(1) Subject to section 15 of this Act, a person shall be entitled to be registered in Part I of the register if he applies for registration and satisfies the Council—

(a) that on the 1st January 1976 his name was registered in the Register of Farriers kept by the Company; or

(b) that he has satisfied such conditions as to apprenticeship or training or both as the Council may prescribe and has passed a prescribed examination; or

(c) that he has completed a course of training as a farrier in Her Majesty's Army and has passed a prescribed examination; or

(d) that he has been registered in Part II or in Part IV of the register and has passed a prescribed examination; or

(e) that he holds a qualification granted outside the United Kingdom and for the time being accepted for the purposes of this subsection by the Council and that during any period of two years subsequent to the date when he obtained his qualification he has been regularly and gainfully engaged in the shoeing of horses.

(2) Subject to section 15 of this Act, a person shall be entitled to be registered in Part II of the register if he applies for registration before such date as may be prescribed and satisfies the Council that during any period of two years before the date of his application or such shorter period as the Council may approve he was—

(a) otherwise than as an apprentice or while undergoing a course of training regularly engaged in the shoeing of horses in a business which consists exclusively of such shoeing or is the business of a blacksmith or general smith of which the shoeing of horses forms a part; or

(b) practising as a farrier in Her Majesty's Army.

(3) Subject to section 15 of this Act, a person shall be entitled to be registered in Part III of the register if he applies for registration before such date as may be prescribed and satisfies the Council by means of a certificate by a practising veterinary surgeon, which shall be in the prescribed form, or by such other evidence as the Council may in his case consider appropriate, that during any period of two years before the date of his application for registration he has regularly and competently—

(a) carried out the shoeing of horses belonging to himself; or

(b) otherwise than by way of trade or for reward carried out the shoeing of horses belonging to other persons.

(4) Subject to section 15 of this Act, a person shall be entitled to be registered in Part IV of the register if—

(a) being a person who is not otherwise entitled to be registered under this Act he applies for registration before such date as may be prescribed and satisfies the Council that during any period of two years before the date of his application for registration or such shorter period as the Council may approve he has been regularly and gainfully engaged in the shoeing of horses otherwise than as an apprentice or while undergoing a course of training ; or

(b) being a person who has not passed a prescribed examination he applies for registration before the said prescribed date and satisfies the Council that he has complied with—

(i) the conditions as to apprenticeship or training prescribed by the Council in accordance with paragraph (b) of subsection (1) of this section and

(ii) such additional conditions, if any, as to further apprenticeship or training as the Council may require in his case.

(5) In any case in which it appears to the Council that a person has for sufficient reason failed to make application under subsection (2), subsection (3), or subsection (4) of this section before such dates as the Council may have respectively prescribed for the purposes of those subsections the Council may direct that he shall be entitled to apply within such period as may be specified in that direction."

2. In section 8 for the words "subsection (2)" there shall be substituted the words "subsection (1)".

3. In section 10(1)(b) after "Part III" there shall be inserted the words "or Part IV".

4. In section 11(1) after the words "purposes of this Act" there shall be inserted the words "or of rules made by the Council thereunder".

5. After section 15 insert the following section—

"Restriction on use of style. 15A.—(1) It shall be unlawful for a person who is not registered in the register to use or adopt the style, title or description "farrier" or "shoeing smith" or any other style, title or description which is likely to cause any other person to believe that such first mentioned person is so registered:

Provided that this subsection shall not apply to a person—

(i) who, having had his name removed from the register, has not yet been given notice by the registrar of its removal ; or

(ii) who, having applied for registration in the register, has not had his application finally determined.

(2) A person who contravenes this section shall be liable on summary conviction to a fine not exceeding £100."

6. In section 16(2) for paragraph (b) thereof there shall be substituted the following paragraph:—

"(b) who, having applied for registration in the register, has not had his application finally determined".

7. In Schedule 3, paragraph 1(2), for the words "the quorum and of" there shall be substituted the words "and as to".